

## Sri P.M.Rajashekar @Rajashwaraiah vs Smt Neeta W/O P.M. Rajashekaraiah, on 17 August, 2010

**Bench: K.L.Manjunath, B.Manohar**

E  
IN THE HIGH COURT OF KARNATAKA AT BANGALORE  
DATED THIS THE 17<sup>th</sup> DAY OF AUGUST, 2010  
PRESENT x HON. J.  
THE HON'BLE M. JUSTICE-K.L. JESUDAS  
AND . . . .  
THE HON'BLE MR. JUSTICE E. MAHESWAR;  
MISC. FIRST APPEAL. E\$g531;/ESOS LEE)  
BETWEEN: K. Uday  
P.M.Rajashekar Q. Rajashwaraiah  
Shivalingamurthy P.M.; '41 years

Occ: Private work, 3 at Nayakanahatti,  
Challakere Taluk V. "A" 7 V

APPELLANT  
(sy{Ea\$ScS;erSEi;g:g.xEiE\$ni)  
AND: E. V. K. . . .  
Neeta.w/o S. Rajashwaraiah,

. 36 years; Occasional household duties,  
'R/at-Nayakanahatti village,

A. d. Chalakere; \$q:

A. 6 pat E. V. Crdss, Vageeshnagar,

»~Ranibennur Tq. & Post,

V. fl. averi Dist. . . RESPONDENT

dT, {By Advocate Sri.R.Suresh & Hiremath)

---. -uu.....\_u.-on uWdThis Misc. First Appeal is filed under Sec.28 dE of Hindu Marriage Act against the order dated (D/.

'7 L:

2.6.2009 passed in MC No.10/2008 on the file of the Civil Judge (Sr.Dn.), Chalakere, dismissing the claim petition filed under Sec.13(B) of Hindu Marriage Act for dissolution of marriage. W. This Appeal is coming on for final hearing on this day, MANJUNATH J. delivered the following judgment: The parties have filed a compromise petition. It is signed by both the parties and the respective

advocates. Parties the court and they have been identified by their respective advocates, ----- d=""

2. on an' 2earl'i.er...>occ;as<i\*on parties have filed a consent .petition 'under Sec.13B of the Hindu f marriage Act, before the Civil Judge (Sr.Dn.), Challahere in MC No.10/2008 wherein it was settled eethat a sum of Rs.3,25,000/-- has to be paid to the W life by the husband towards permanent alimony and i has to transfer 4 acres of land in Sy.No.2§1/1 of l ayanahatti village in the name of minor daughter l g"Nivedita and it was also agreed that a house {3./ property bearing No.37?/794 of Nayakanahatti has to be given to the wife. Accordingly, a Lsum\_ of Rs.3,25,000/m was paid by means of Demand n£g£gs\_çn 6.8.2008 and all the jewels were returned to the] wife. However, a case was not ended in. settlement on account of the wife did not appear before the court. After the case was e§§tl§d'ra çémplaint was lodged by the vreepondentYwife,' before the Superintendent 'clef g~~polic€ifillchitradurga in Cr.No.94/08 and §§;,,ga§é#a§aLgg£} has regietered a case against the appellant under Sec.498wA, 323 and 506 of ISc,: eai□és aleb submit that on account of the non--settlement lof, the case before the Civil \_Judge «KSR}Dn.i,\*eChal1akere, complaint was lodged which" is, only< an after--thought. Husband filed. a vpatitiozi VA';=.rJe;Eund of Rs.3,25,000/- which was 7, given a3 permanent alimony, which petition came to = be rejected. Therefore, present appeal is filed. 6".

3. Parties today filed a compromise petition stat ing that in addition to paynaent \_ A' of Rs.3,25,000/- paid by the husband to 4\_ transferring of 4 acres of land>..;;n ' Nayakanahatti village to the "'daugh'l:.er., of Rs.5 lacs has been agreed the husband to the wife. tow;e.rds\*: the education and welfare of the minor deegh□fluifeeita which amount has been agreecil' to a week from today. On based on the compromise §a--rtie'se....i:equest the court to allow '-- 4' " dissolve the marriage solemnized 'Parties 011 9-12-2001 at Renebenr.iuriA'by waAy\*of\_\_\_gconsent divorce.

4. compromise petition is taken on x"Vrecord;--~..' \_ Appeal is allowed. MC No.10/2008 filed by

--.\_.§]';'Ai2ei"\*yarties; under Sec.13(B) of the Hindu Marriage '»l=Ac§Ybe□ere the Civil Judge (Sr.Dn.), Challakere is allowed and the marriage solemnized between parties has been dissolved subject to the 6"

payment of Rs.5 lacs by the appellant to the wife within a week from today. Respondent is direoted to deposit Rs.5 lacs jointly in her name and in the name of her minor daughter Nivedita□till she I attains the age of majority and she is per□tted to withdraw the periodical interest," We also permit; the respondentmwife to tlis Judge (Sr.Dn.), Challakere or this oourt to withdraw the aforesaid amount\_ in ,the he□n□egg; intends to purchase any residential honse or site in the joint name of her dindrgda□ghter and herself. If the,ano□ht of §s-5 lacs as agreed is not paid within a weeky this appeal stands dismissed. sazG Judas , saii Judge :ii'RX248810